

Number 17 *of* 1965

EXTRADITION ACT 1965

REVISED

Updated to 1 February 2019

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All Acts up to and including *Local Government Act 2019* (1/2019), enacted 25 January 2019, and all statutory instruments up to and including *Brown Crab (Conservation Of Stocks) Regulations 2019* (S.I. No. 26 of 2019), made 1 February 2019, were considered in the preparation of this Revised Act.

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AN ACT TO AMEND THE LAW RELATING TO EXTRADITION. [19*th July*, 1965.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS :—

PART I

Preliminary

Short title.

1.—This Act may be cited as the Extradition Act, 1965.

Commencement.

2.—This Act shall come into operation on such day as the Minister by order appoints.

Interpretation.

3.—(1) In this Act—

"act" includes omission;

['country' includes—

(*a*) a place or territory for whose external relations a country, other than that place or territory, is (in whole or in part) responsible, and

(*b*) a place or territory for whose external relations the government of a country, other than the government of that place or territory, is (in whole or in part) responsible.**]**

"detention order", in relation to another country, means any order involving deprivation of liberty which has been made by a criminal court in that country in addition to or instead of a prison sentence;

"diplomatic agent" means an ambassador extraordinary and plenipotentiary, envoy extraordinary and minister plenipotentiary or chargé d'affaires;

"extradition" means the surrender of a person under the provisions of Part II to a country in relation to which that Part applies;

"extradition agreement" has the meaning assigned to it by subsection (1) of section 8;

Obligation to extradite.

[Art. 1]

9.—Where a country in relation to which this Part applies duly requests the surrender of a person who is being proceeded against in that country for an offence or who is wanted by that country for the carrying out of a sentence, that person shall, subject to and in accordance with the provisions of this Part, be surrendered to that country.

Extraditable offences.

[Art. 2]

10.—(1) Subject to subsection (2), extradition shall be granted only in respect of an offence which is punishable under the laws of the requesting country and of the State by imprisonment for a maximum period of at least one year or by a more severe penalty and for which, if there has been a conviction and sentence in the requesting country, imprisonment for a period of at least four months or a more severe penalty has been imposed.

[(1A) Subject to subsection (2A), extradition to a requesting country that is a Convention country shall be granted only in respect of an offence that is punishable—

(*a*) under the laws of that country, by imprisonment or detention for a maximum period of not less than one year or by a more severe penalty, and

(*b*) under the laws of the State, by imprisonment or detention for a maximum period of not less than 6 months or by a more severe penalty,

and for which, if there has been a conviction and sentence in the requesting country, imprisonment for a period of not less than 4 months or a more severe penalty has been imposed.**]**

(2) If a request is made for extradition in respect of an offence to which subsection (1) applies and the request includes also any other offence which is punishable under the laws of the requesting country and of the State but does not comply with the conditions as to the period of imprisonment which may be, or has been, imposed, then extradition may, subject to the provisions of this Part, be granted also in respect of the latter offence.

[(2A) If a request is made by a Convention country for extradition for—

(*a*) an offence to which subsection (1A) applies, and

(*b*) an offence punishable under the laws of that country and of the State in respect of which there is a failure to comply with subsection (1A),

extradition may, subject to this Part, be granted in respect of the second-mentioned offence, but where extradition is refused for the first-mentioned offence it shall be refused for the second-mentioned offence also.**]**

[(3) In this section 'an offence punishable under the laws of the State' means—

(*a*) an act that, if committed in the State on the day on which the request for extradition is made, would constitute an offence, or

(*b*) in the case of an offence under the law of a requesting country consisting of the commission of one or more acts including any act committed in the State (in this paragraph referred to as 'the act concerned'), such one or more acts, being acts that, if committed in the State on the day on which the act concerned was committed or alleged to have been committed would constitute an offence,

and cognate words shall be construed accordingly.**]**

[(4) In this section 'an offence punishable under the laws of the requesting country' means an offence punishable under the laws of the requesting country on—

(*a*) the day on which the offence was committed or is alleged to have been committed, and

(2) In proceedings to which this Part applies, a document purporting to be a copy of a document supporting a request for extradition from a Convention country shall, subject to subsection (3), be received in evidence without further proof.

(3) In proceedings to which this Part applies, a document that purports to be certified by—

(*a*) the judicial authority in a Convention country that issued the original, or

(*b*) an officer of the Central Authority of such a country duly authorised to so do,

to be a true copy of a conviction and sentence or detention order immediately enforceable or, as the case may be, the warrant of arrest or other order having the same effect and issued in accordance with the procedure laid down in the law of that country, shall be received in evidence without further proof, and where the seal of the judicial authority or Central Authority concerned has been affixed to the document, judicial notice shall be taken of that seal.**]**

Offences committed abroad by Irish citizens.

[cf. Art. 6.2]

38.—(1) Where any citizen of Ireland does any act outside the State which constitutes an offence for which he would be liable to extradition but for the fact that he is a citizen of Ireland he shall be guilty of the like offence and be liable on conviction to the like punishment as if the act were done within the State.

(2) No proceedings for an offence under subsection (1) shall be taken except by direction of the Attorney General, given following a request to that effect made in the manner provided for in section 23 by the country within whose territory the act is alleged to have been committed.

(3) This section shall apply only to acts committed after the commencement of this Act.

(4) For the purpose of the exercise of jurisdiction, in relation to an offence to which subsection (1) applies, by any court of competent jurisdiction the act constituting the offence shall be deemed to have been committed within the area of the Dublin Metropolitan District.

Rule of specialty as applied by the State.

[Art. 14]

39.—(1) This section applies to a person who has been surrendered to the State by a requested country.

(2) **[**Subject to subsection (2A) (inserted by section 16(b) of the Extradition (European Union Conventions) Act, 2001), a person to whom this section applies shall not be proceeded against, sentenced or imprisoned or otherwise restricted in his personal freedom for any offence committed before his surrender other than that for which he was surrendered, except in the following cases**]**—

(*a*) with the consent of the requested country, signified under the seal of a **[**a minister of state, ministry or department of state of that country or such other person as performs in that country functions the same as or similar to those performed by the Minister under this Act, as may be appropriate,**]**, which seal shall be judicially noticed, or

(*b*) where that person, having had an opportunity to leave the State, has not done so within forty-five days of his final discharge in respect of the offence for which he was surrendered or has returned to the State after leaving it.

(3) Where the description of the offence charged is altered in the course of proceedings, he shall only be proceeded against or sentenced in so far as the offence under its new description is shown by its constituent elements to be an offence for which he would be liable to be surrendered to the State.